

1 SENATE BILL NO. 193

2 INTRODUCED BY J. TREBAS, M. NIKOLAKAKOS, D. EMRICH, G. NIKOLAKAKOS

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING THAT THE GOVERNOR IS RESPONSIBLE FOR
5 APPOINTING MEMBERS OF THE ATTORNEYS' EXAMINING BOARD; AND AMENDING SECTION 37-61-
6 102, MCA."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 **Section 1.** Section 37-61-102, MCA, is amended to read:

11 **"37-61-102. Attorneys' examining board -- appointment, quorum, and powers.** (1) The ~~supreme~~
12 ~~court-governor~~ shall appoint members of the bar of this state, in good standing, as an examining board to
13 conduct and assist in conducting the examination of applicants for admission to the bar. The board may not
14 exceed seven members. The ~~court-governor~~ may release, dismiss, or remove any member of the board and
15 appoint other members at any time.

16 (2) A majority of the board is a quorum and may conduct examinations.

17 (3) The board shall perform the duties and render assistance in the examinations of applicants as
18 prescribed by the ~~court-governor~~ and is governed and controlled by the rules that the ~~court-governor~~ may
19 prescribe."

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